

THE TEACHING PROFESSION

INTRODUCTION TO TEACHING PROFESSION - DEVELOPMENT OF PHILIPPINE EDUCATION

The present educational system of the Philippines is the result of a long process of educational evolution.

- Pre-Spanish Period
 - During the pre-Spanish period, education was informal. It means that there was no overruling agency that governs the educational system.
 - The child is taught at home by the parents or by some tribal tutor.
 - The practice of apprenticeship, whereby a person usually learns some occupational skill from his parents or sent to somebody as an apprentice who knows a certain job [say, a blacksmith]
 - Institutionalized education in the form of initiation rites and religious ceremonies. The priest called sonats provided a specialized training for would-be priest.
 - We can safely assume that subjects of instruction that is being taught inside the house deals with tribal rules/codes, instructions of faith [paganism, animism], basic counting system [I believe that there should be since early Filipinos [or should we say Indio] were already exchanging trades with neighboring Asian countries], and basic literacy [the Alibata, our local alphabet system and local language].
- Spanish Period
 - The Royal Decree of 1555 of King Carlos I mandated the three goals of Spanish education; Indoctrination of Christianity of Spanish language and imposition of Spanish culture.
 - Education of the Filipino was mainly learning the Christian doctrine. It was simple catechism, not the same as Christian education in Europe.
 - The vernacular, not Spanish was used as the medium of instruction in the parochial schools.
 - The religious orders introduced the parochial school concept practiced in Europe during the Dark Ages. The rise of parochial schools started in Cebu in 1565 by the Augustinian missionaries. Subjects other than the Doctrine were soon offered and these were simple arithmetic, music and various arts and trades.
 - The Royal Decree in 1863, penned by Minister Jose de la Concha, was the first attempt of the Spaniards to establish an overall public school system and to provide for the training of teachers through a normal school attached to “Escuela Pia”, now Ateneo de Manila University
- Revolutionary Republic
 - The first was established on June 12, 1898 in Kawit, Cavite with General Emilio Aguinaldo as President, June 12 is now the official independence day in the country.
 - The first organized reaction against Spanish in justice happened from 1862 to 1872. Patriotic Filipinos formed the “Comite de Reformadores” in 1862 to work for reforms for the assimilation of the country as a province of Spain. This group was led by the priest Mariano Gomez, Jose Burgos, and Jacinto Zamora (GOMBURZA). The reform movement ended up at the Cavite mutiny and the execution of the three priests in 1872.
- American Period

- o The treaty of Paris on December 10, 1898 put an end to the First Republic President McKinley issued his “Benevolent Policy of Assimilation” by which the America would assume full control and administration of Philippine Affairs.
- o In 1899 he appointed a commission to study the newly acquired territory and this was the Schurman Commission. In 1900 another commission was appointed and this was the Taft Commission. Its task was to organized a civil government. In March 1900 the office of Superintendent of Public Instruction was created with Capt. Albert Todd as the general superintendent of schools.
- o The education act of 1901, also known as Act No. 74 of the Philippine Commission was promulgated to establish a department of Public Instruction. Sections 1 to 13 were meant to establish a highly centralized system. Sections 14 and 15 provided for the importations of teachers (the Thomasites). Section 16 provided for the separation of Church and state. Section 17 created the Philippine Normal School.
- o The Department of Public Instruction set up a three-level instruction of schools. The first level consisted of a four-year primary and three-year intermediate. The second level was a four-year high school. The third level at first was a two-year junior college and later a four-year program.
- o The name of Bureau of Public Instruction become Bureau of Education under Act No.477 which was passed on November 1, 1902
- o The high school system supported by provincial governments, special educational institutions, established 1902 by the Phil. Commission.
- o In 1908, the Philippine Legislature approved Act. No 1870 which created the University of the Philippines.
- o The Reorganization Act of 1916 provided the *Filipinization* of all department secretaries except the Secretary of Public Instruction.
- o In 1925, the Monroe Survey Commission was created to evaluate the entire school system the Americans set up. It was the first of its kind in the country and headed by Paul Monroe.
- Japanese Period
 - o Japanese educational policies were embodied in Military Order No. 2 in 1942
 - o On Oct. 14, 1943, the Japanese sponsored Republic created the Ministry of Education.
 - o Under the Japanese:
 - *Teaching of tagalog, Philippine History & Character Education* was reserved for Filipinos
 - Love for work and dignity of labor was emphasized.

NOTE THE IMPORTANT EVENTS:

- On February 27, 1945, the *Department of Instruction* was made part of the *Department of Public instruction*.
- In 1947, by virtue of Executive Order No. 94, the *Department of instruction* was changed into Department of Education.
- During the period, the regulation and *supervision of public and private schools* belonged to the Bureau of Public and private.
- In 1972, it became the Department of Education Culture by virtue of Proclamation 1081.
- In 1978 it became Ministry of Education and Culture by virtue of P.D. No.1397.

- The Education Act of 1982 created the Ministry of Education Culture and Sports which later became Department of Education Culture and Sports in 1987 by virtue of Executive order NO. 117
- The structure of DECS has remained unchanged until 1994 when the Commission on Higher Education (CHED) and the Technical Education and Skills Development Authority (TESDA) were established to supervise tertiary degree program and non-degree technical-vocational programs, respectively.
- The Congressional Commission on Education (EDCOM) report provided for Congress to pass RA 7722 and RA 7796 to create TESDA, respectively

Trifocalized system of education

- o Basic Education- RA9155
- o CHED- RA7722
- o TESDA- RA7796

In August 2001, Republic Act 9155, otherwise known as Government of basic Education Act, transformed DECS to DepEd

- RA 9155
 - o School head empowerment by strengthening their leadership roles
 - o School based management within the context of transparency and local accountability

LAWS IN THE PRACTICE OF THE TEACHING PROFESSION

ARTICLE XIV OF 1987 CONSTITUTION

Section 1. 'The State shall protect and promote the right of all citizens to quality education at all levels, and shall take appropriate steps to make such education accessible to all.

Section 2. The State shall;

- (1) Establish, maintain and support a complete, adequate and integrated system of education relevant to the needs of the people and society;
- (2) Establish and maintain a system of free public education in the elementary and high school levels. Without limiting the natural right of parents to rear their children, elementary education is compulsory for all children of school ages;
- (3) Establish and maintain a system of scholarship grants, student loan programs, subsidies, and other incentives which shall be available to deserving students in both public and private schools, especially to the underprivileged;
- (4) Encourage non-formal, informal, and indigenous learning systems, as well as self-learning, independent, and out-of-school study programs particularly those that respond to community needs; and

(5) Provide adult citizens, the disabled, and out-of-school youth with training in civics, vocational efficiency, and other skills.

Section 3. (1) All educational institutions shall include the study of the Constitution as part of the curricula.

(2) They shall inculcate patriotism and nationalism, foster love of humanity, respect for human rights, appreciation of the role of national heroes in the historical development of the country, teach the rights and duties of citizenship, strengthen ethical and spiritual values, develop moral character and personal discipline, encourage critical and creative thinking, broaden scientific and technological knowledge, and promote vocational efficiency.

(3) At the option expressed in writing by the parents or guardians, religion shall be allowed to be taught to their children or wards in public elementary and high schools within the regular class hours by instructors designated or approved by the religious authorities of the religion to which the children or wards belong, without additional cost to the Government.

Republic Act No. 9155

AN ACT INSTITUTING A FRAMEWORK OF GOVERNANCE FOR BASIC EDUCATION, ESTABLISHING AUTHORITY AND ACCOUNTABILITY, RENAMING THE DEPARTMENT OF EDUCATION, CULTURE AND SPORTS AS THE DEPARTMENT OF EDUCATION, AND FOR OTHER PURPOSES

- SECTION 1. Short Title. – This Act shall be known as the “Governance of Basic Education Act of 2001.”
- SEC. 2. Declaration of Policy. – It is hereby declared the policy of the State to protect and promote the right of all citizens to quality basic education and to make such education accessible to all by providing all Filipino children a free and compulsory education in the elementary level and free education in the high school level. Such education shall also include alternative learning systems for out-of-school youth and adult learners. It shall be the goal of basic education to provide them with the skills, knowledge and values they need to become caring, self-reliant, productive and patriotic citizens.
- School – heart of the formal educational system
- School Head’s Role – Instructional leader and Administrative manager
- Sports is transferred to the Philippine Sports Commission

REPUBLIC ACT NO. 4670 (June 18, 1966) THE MAGNA CARTA FOR PUBLIC SCHOOL TEACHERS

I. DECLARATION OF POLICY COVERAGE

Sec. 1. Declaration of Policy. It is hereby declared to be the policy of this Act to promote and improve the social and economic status of public school teachers, their living and working conditions, their terms of employment and career prospects in order that they may compare favorably with existing opportunities in other walks of life, attract and retain in the teaching profession more people with the proper qualifications...

Sec. 2. Title Definition. This Act shall be known as the "Magna Carta for Public School Teachers" and shall apply to all public school teachers except those in the professorial staff of state colleges and universities.

Sec. 11. Married Teachers. Whenever possible, the proper authorities shall take all steps to enable married couples, both of whom are public school teachers, to be employed in the same locality.

Sec. 12. Academic Freedom. Teachers shall enjoy academic freedom in the discharge of their professional duties, particularly with regard to teaching and classroom methods.

III. HOURS OF WORK AND REMUNERATION

Sec. 13. Teaching Hours. Any teacher engaged in actual classroom instruction shall not be required to render more than six hours of actual classroom teaching a day, which shall be so scheduled as to give him time for the preparation and correction of exercises and other work incidental to his normal teaching duties: Provided, however, That where the exigencies of the service so require, any teacher may be required to render more than six hours but not exceeding eight hours of actual classroom teaching a day upon payment of additional compensation at the same rate as his regular remuneration plus at least twenty-five per cent of his basic pay.

Sec. 18. Cost of Living Allowance. Teacher's salaries shall, at the very least, keep pace with the rise in the cost of living by the payment of a cost-of-living allowance which shall automatically follow changes in a cost-of-living index.

Sec. 19. Special Hardship Allowances. In areas in which teachers are exposed to hardship such as difficulty in commuting to the place of work or other hazards peculiar to the place of employment, as determined by the Secretary of Education, they shall be compensated special hardship allowances equivalent to at least twenty-five per cent of their monthly salary.

IV. HEALTH MEASURES AND INJURY BENEFITS

Sec. 22. Medical Examination and Treatment. Compulsory medical examination shall be provided free of charge for all teachers before they take up teaching, and shall be repeated not less than once a year during the teacher's professional life. Where medical examination show that medical treatment and/or hospitalization is necessary, same shall be provided free by the government entity paying the salary of the teachers.

Sec. 23. Compensation For Injuries. Teachers shall be protected against the consequences of employment injuries in accordance with existing laws. The effects of the physical and nervous strain on the teacher's health shall be recognized as a compensable occupational disease in accordance with existing laws.

V. LEAVE AND RETIREMENT BENEFITS

Sec. 24. Study Leave. In addition to the leave privileges now enjoyed by teachers in the public schools, they shall be entitled to study leave not exceeding one school year after seven years of service. Such leave shall be granted in accordance with a schedule set by the Department of Education. During the period of such leave, the teachers shall be entitled to at least sixty per cent of their monthly salary: Provided, however, That no teacher shall be allowed to accumulate more than

one year study leave, unless he needs an additional semester to finish his thesis for a graduate study in education or allied courses: Provided, further, That no compensation shall be due the teacher after the first year of such leave. In all cases, the study leave period shall be counted for seniority and pension purposes.

Sec. 25. Indefinite Leave. An indefinite sick leave of absence shall be granted to teachers when the nature of the illness demands a long treatment that will exceed one year at the least.

Sec. 26. Salary Increase upon Retirement. Public school teachers having fulfilled the age and service requirements of the applicable retirement laws shall be given one range salary raise upon retirement, which shall be the basis of the computation of the lump sum of the retirement pay and the monthly benefits thereafter.

Republic Act 7836

Philippine Teachers Professionalization Act of 1994

- AN ACT TO STRENGTHEN THE REGULATION AND SUPERVISION OF THE PRACTICE OF TEACHING IN THE PHILIPPINES AND PRESCRIBING A LICENSURE EXAMINATION FOR TEACHERS AND FOR OTHER PURPOSES.

SECTION 1. Short Title. — This Act shall be known as the "Philippine Teachers Professionalization Act of 1994."

Sec. 2. Statement of Policy. — The State recognizes the vital role of teachers in nation-building and development through a responsible and literate citizenry. Towards this end, the State shall ensure and promote quality education by proper supervision and regulation of the licensure examination and professionalization of the practice of the teaching profession.

Sec. 3. Objectives. — This Act has the herein objectives:

- (a) The promotion, development and professionalization of teachers and the teaching profession; and
- (b) The supervision and regulation of the licensure examination.

Sec. 4. Definition of Terms. — For purposes of this Act, the following terms shall mean:

- (a) "Teaching" — refers to the profession concerned primarily with classroom instruction, at the elementary and secondary levels in accordance with the curriculum prescribed by the Department of Education, Culture and Sports, whether on part-time or full-time basis in the private or public schools.
- (b) "Teachers" — refers to all persons engaged in teaching at the elementary and secondary levels, whether on full-time or part-time basis, including industrial arts or vocational teachers and all other persons performing supervisory and/or administrative functions in all schools in the aforesaid levels and qualified to practice teaching under this Act.
- (c) "Board" — refers to the Board for Professional Teachers duly established and constituted under this Act.

(d) "Commission" — refers to the Professional Regulation Commission.

SECTION 13. Examination, Registration and License Required. — Except as otherwise specifically allowed under the provisions of this Act, all applicants for registration as professional teachers shall be required to undergo a written examination which shall be given at least once a year in such places and dates as the Board may determine upon approval by the Commission.

A valid certificate of registration and a valid professional license from the Commission are required before any person is allowed to practice as a professional teacher in the Philippines, except as otherwise allowed under this Act.

SECTION 14. Scope of Examination. — The examinations for the elementary and secondary school teachers shall be separate. The examination for teachers in the elementary level shall consist of two (2) parts, namely: professional education and general education. The examination for teachers in the secondary level shall consist of three (3) parts, namely: professional education, general education, and field of specialization.

SECTION 15. Qualification Requirements of Applicants. — No applicant shall be admitted to take the examination unless, on the date of filing of the application, he shall have complied with the following requirements:

- (a) A citizen of the Philippines or an alien whose country has reciprocity with the Philippines in the practice of the teaching profession;
- (b) At least eighteen (18) years of age;
- (c) In good health and of good reputation with high moral values;
- (d) Has not been convicted by final judgment by a court for an offense involving moral turpitude;
- (e) A graduate of a school, college or university recognized by the government and possesses the minimum educational qualifications, as follows:
 - (1) For teachers in preschool, a bachelor's degree in early childhood education (BECED) or its equivalent;
 - (2) For teachers in the elementary grades, a bachelor's degree in elementary education (BSEED) or its equivalent;
 - (3) For teachers in the secondary grades, a bachelor's degree in education or its equivalent with a major and minor, or a bachelor's degree in arts and sciences with at least ten (10) units in professional education; and
 - (4) For teachers of vocational and two-year technical courses, a bachelor's degree in the field of specialization or its equivalent, with at least eighteen (18) units in professional education.

SECTION 16. Report of the Results of the Examination. — The Board shall, within one hundred twenty (120) days after the examination, report the ratings obtained by each candidate to the Professional Regulation Commission for approval and appropriate action.

SECTION 17. Issuance of Certificate of Registration and Professional License.

- The registration of a professional teacher commences from the date his name is enrolled in the roster of professional teachers.
- Every registrant who has satisfactorily met all the requirements specified in this Act shall, upon payment of the registration fee, be issued a certificate of registration as a professional teacher bearing the full name of the registrant with serial number and date of issuance signed by the chairman of the Commission and the chairman...

SECTION 18. Oath Before Practice. — Every registrant shall be required to take his professional oath before practicing as a professional teacher.

SECTION 19. Periodic Merit Examination of Teachers. — To encourage continuing professional growth and development and to provide additional basis for merit promotion, in addition to their performance rating, teachers may take an oral and written examination at least once in five (5) years as basis for merit promotion. In taking this examination, no fee shall be required.

Sec. 20. Failure to Pass the Merit Examination. — If a teacher fails to pass the merit examination, he or she shall be allowed to take the examination for a second time. Should he or she fail to pass the merit examination for the second time, then he or she shall be required to take a DECS accredited refresher course or program before being allowed to retake the examination.

Failure of any permanent teacher to pass the merit examination shall not, however, be used as a ground for his/her dismissal or demotion.

Sec. 21. Incentives. — Teachers who pass the merit examination shall:

- (a) Be awarded a diploma of merit by the Board;
- (b) Earn merit points for purposes of promotion in salary or to a higher position or grade level;
- (c) Be placed in the priority list for government scholarship; and
- (d) Enjoy such other benefits as may be promulgated by the Board.

Sec. 22. Integration of the Teaching Profession. —

- The teaching profession shall be integrated into one national organization which shall be recognized by the Board and the Commission as the one and only integrated and accredited association of professional teachers.
- Upon registration with the Board, every professional teacher shall be encouraged to become a member of the integrated national organization.

Sec. 23. Revocation of the Certificate of Registration, Suspension from the Practice of the Teaching Profession, and Cancellation of Temporary or Special Permit.

The Board shall have the power, after due notice and hearing, to suspend or revoke the certificate of registration of any registrant, to reprimand or to cancel the temporary/special permit of a holder thereof who is exempt from registration, for any of the following causes:

- (a) Conviction for any criminal offense by a court of competent jurisdiction;
- (b) Immoral, unprofessional or dishonorable conduct;
- (c) Declaration by a court of competent jurisdiction for being mentally unsound or insane;
- (d) Malpractice, gross incompetence, gross negligence or serious ignorance of the practice of the teaching profession;
- (e) The use of or perpetration of any fraud or deceit in obtaining a certificate of registration, professional license or special/temporary permit;
- (f) Chronic inebriety or habitual use of drugs;
- (g) Violation of any of the provisions of this Act, the rules and regulations and other policies of the Board and the Commission, and the code of ethical and professional standards for professional teachers; and
- (h) Unjustified or willful failure to attend seminars, workshops, conferences and the like or the continuing education program prescribed by the Board and the Commission.

Sec. 25. Roster of Professional Teachers. — A roster of professional teachers containing the names and addresses of professional teachers, date of registration or issuance of certificate, and other data which in the opinion of the Board may appear pertinent shall be maintained. Copies of the roster shall be provided by the Commission to the Board, the Department of Education, Culture and Sports, and the integrated and accredited organization of professional teachers.

Sec. 26. Registration and Exception. —

- Upon approval of the application and payment of the prescribed fees, the certificate of registration and professional license as a professional teacher shall be issued without examination as required in this Act to a qualified applicant, who at the time of the approval of this Act, is:
 - (a) A holder of a certificate of eligibility as a teacher issued by the Civil Service Commission and the Department of Education, Culture and Sports; or
 - (b) A registered professional teacher with the National Board for Teachers under the Department of Education, Culture and Sports (DECS) pursuant to Presidential Decree No. 1006; or
 - (c) Not qualified under paragraphs one and two but with any of the following qualifications. to wit:
 - (1) An elementary or secondary teacher for five (5) years in good standing and a holder of Bachelor of Science in Education or its equivalent; or
 - (2) An elementary or secondary teacher for three (3) years in good standing and a holder of a master's degree in education or its equivalent.

Sec. 28. Penal Provisions. — The following shall be punishable by a fine of not less than Five thousand pesos (P5,000.00) nor more than Twenty thousand pesos (P20,000.00) or imprisonment of nor less than six (6) months nor more than five (5) years, or both, at the discretion of the court:

REPUBLIC ACT NO. 9293

- AN ACT AMENDING CERTAIN SECS OF REPUBLIC ACT NUMBERED SEVENTY-EIGHT HUNDRED AND THIRTY-SIX (R.A. NO. 7836), OTHERWISE KNOWN AS THE “PHILIPPINE TEACHERS PROFESSIONALIZATION ACT OF 1994”

SECTION 1. Section 15, (e) (3) of Republic Act No. 7836 is hereby amended as follows:

“SEC. 15. Qualification Requirements of Applicants. – No applicant shall be admitted to take the examination unless, on the date of filing of the application, he shall have complied with the following requirements:

“(e) A graduate of a school, college or university recognized by the government and possesses the minimum educational qualifications, as follows:

- (1) For teachers in preschool, a bachelor’s degree in early childhood education (BECED) or its equivalent;
- (2) For teachers in the elementary grades, a bachelor’s degree in elementary education (BSEED) or its equivalent;
- (3) For teachers in the secondary grades, a bachelor’s degree in education or its equivalent with a major and minor, or a bachelor degree in arts and sciences with at least eighteen (18) units in professional education; and
- (4) For teachers of vocational and two-year technical courses, a bachelor’s degree in the field of specialization or its equivalent, with at least eighteen (18) units in professional education.”

SEC 2. Section 26 of the same Act is hereby amended to read as follows:

“SEC. 26. Registration and Exception. –

- No person shall engage in teaching and/or act as a professional teacher as defined in this Act, whether in the preschool, elementary or secondary level, unless the person is a duly registered professional teacher, and a holder of a valid certificate of registration and a valid professional license or a holder of a valid special/temporary permit.
- Upon approval of the application and payment of the prescribed fees, the certificate of registration and professional license as a professional teacher shall be issued without examination as required in this Act to a qualified applicant, who is:
 - (a) A holder of a certificate of eligibility as a teacher issued by the Civil Service Commission and the Department of Education, Culture and Sports; or
 - (b) A registered professional teacher with the National Board for Teachers under the Department of Education, Culture and Sports (DECS) pursuant to Presidential Decree No. 1006.

- Professional teachers who have not practiced their profession for the past five (5) years shall take at least twelve (12) units of education courses, consisting of at least six (6) units of pedagogy and six (6) units of content courses, or the equivalent training and number of hours, to be chosen from a list of courses to be provided by the Board and the Department of Education, before they can be allowed to practice their profession in the country.
- Those who have failed the licensure examination for professional teachers, with a rating of not lower than five percentage points from the passing general average rating, shall be eligible as para-teachers upon issuance by the Board of a two-year special permit, renewable for a non-extendible period of two (2) years. The para-teachers shall be assigned to areas where there is a shortage or absence of a professional teacher, as identified and provided by the Department of Education and the Autonomous Region for Muslim Mindanao (ARMM) education department to the Board for professional teachers and to the Commission. The special permit shall indicate the area of assignment of the para-teacher.
- A special permit may also be issued by the Board to a person who has excelled and gained international recognition and is a widely acknowledged expert in his or her respective field of specialization.”

SEC 3. Section 31 of the same Act is hereby amended to read as follows:

“SEC. 31. Transitory Provision. – Special permits, with a validity of three (3) and five (5) years, issued to para-teachers by the Board for Professional Teachers before the effectivity of this Act shall be allowed to expire based on the period granted therein: Provided, That only special permits with a validity of three (3) years may be renewed upon expiration for a non-extendible period of two (2) years.”

Code of Ethics for Professional Teachers

Pursuant to the provisions of paragraph (e). Article 11, of R. A.. No. 7836. otherwise known as the Philippines Professionalization Act of 1994 and Paragraph (a), section 6. P.D. No. 223. as amended, the Board for Professional Teachers hereby adopt the Code of Ethics for Professional Teachers.

PREAMBLE

Teachers are duly licensed professionals who possesses dignity and reputation with high moral values as well as technical and professional competence in the practice of their noble profession, they strictly adhere to. observe, and practice this set of ethical and moral principles, standards, and values.

ARTICLE I – SCOPE AND LIMITATIONS

Section 1. The Philippine Constitution provides that all educational institution shall offer quality education for all competent teachers committed of it's full realization The provision of this Code shall apply, therefore, to all teachers in schools in the Philippines.

Section 2. This Code covers *all public and private school teachers* in all educational institutions at the preschool, primary, elementary, and secondary levels whether academic, vocational, special, technical, or non-formal. The term “teacher” shall include industrial arts or vocational teachers and all other persons performing supervisory and /or administrative functions in all school at the aforesaid levels, whether on full time or part-time basis.

ARTICLE II – THE TEACHER AND THE STATE

Section 1. The *schools are the nurseries* of the future citizens of the state

Section 5. A teacher *shall not engage in the promotion of any political, religious, or other partisan interest*, and shall not, directly or indirectly, solicit, require, collect, or receive any money or service or other valuable material from any person or entity for such purposes

Section 7. A teacher shall not use his position or facial authority or influence to coerce any other person to follow any political course of action.

Section 8. Every teacher shall enjoy academic freedom and shall have privilege of expounding the product of his researches and investigations

ARTICLE VIII – THE TEACHERS AND LEARNERS

Section 4. A teacher shall not accept favors or gifts from learners, their parents or others in their behalf in exchange for requested concessions, especially if undeserved.

Section 5. A teacher shall not accept, directly or indirectly, any remuneration from tutorials other what is authorized for such service.

Section 6. A teacher shall base the evaluation of the learner’s work only in merit and quality of academic performance.

Section 7. In a situation where mutual attraction and subsequent love develop between teacher and learner, the teacher shall exercise utmost professional discretion to avoid scandal, gossip and preferential treatment of the learner.

Section 8. A teacher shall not inflict corporal punishment on offending learners nor make deductions from their scholastic ratings as a punishment for acts which are clearly not manifestation of poor scholarship

ARTICLE X – THE TEACHER AND BUSINESS

Section 1. A teacher has the right to engage, directly or indirectly, in legitimate income generation: provided that it does not relate to or adversely affect his work as a teacher.

Section 2. A teacher shall maintain a good reputation with respect to the financial matters such as in the settlement of his debts and loans in arranging satisfactorily his private financial affairs.

Section 3. No teacher shall act, directly or indirectly, as agent of, or be financially interested in, any commercial venture which furnish textbooks and other school commodities in the purchase and disposal of which he can exercise official influence, except only when his assignment is inherently, related to such purchase and disposal: provided they shall be in accordance with the existing regulations: provided, further, that members of duly recognized teachers cooperatives may participate in the distribution and sale of such commodities.

ARTICLE XII – DISCIPLINARY ACTIONS

Section 1. Any violation of any provisions of this code shall be sufficient ground for the imposition against the erring teacher of the disciplinary action consisting *of revocation of his Certification of Registration and License as a Professional Teacher*, suspension from the practice of teaching profession, reprimand or cancellation of his temporary/special permit under causes specified in Sec. 23. Article HI or R.A. No. 7836. and under Rule 31. Article VIII. of the Rules and Regulations Implementing R.A. 7836.

SELECTED DEPED PROGRAMS IN PHILIPPINE EDUCATION

Kto 12 program (RA 10533) : Enhanced Basic Education Program

The enhanced basic education program encompasses at least one (1) year kindergarten education, six (6) years of elementary education, and six (6) years of secondary education, in that sequence. Secondary education includes four (4) years of junior high school and two (2) years of senior high school education.

REPUBLIC ACT NO. 10157

- AN ACT INSTITUTIONALIZING THE KINDERGARTEN EDUCATION INTO THE BASIC EDUCATION SYSTEM AND APPROPRIATING FUNDS THEREFOR
- UNIVERSAL KINDERGARTEN

Section 1. Short Title. - This Act shall be known as the "Kindergarten Education Act".

Section 2. Declaration of Policy. - In consonance with the Millennium Development Goals on achieving Education for All (EFA) by the year 2015, it is hereby declared the policy of the State to provide equal opportunities for all children to avail of accessible mandatory and compulsory kindergarten education that effectively promotes physical, social, intellectual, emotional and skills stimulation and values formation to sufficiently prepare them for formal elementary schooling. This Act shall apply to elementary school system being the first stage of compulsory and mandatory formal education. Thus, kindergarten will now be an integral part of the basic education system of the country.

Section 3. Definition of Terms.

Kindergarten education shall be understood in this Act to mean one (1) year of preparatory education for children at least five (5) years old as a prerequisite for Grade I; and

Mother tongue refers to the language first learned by a child.

Section 4. Institutionalization of Kindergarten Education. - Kindergarten education is hereby institutionalized as part of basic education and for school year 2011-2012 shall be implemented partially, and thereafter, it shall be made mandatory and compulsory for entrance to Grade 1.

Section 5. Medium of Instruction. - The State shall hereby adopt the mother tongue-based multilingual education (MTB-MLE) method. The mother tongue of the learner shall be the primary medium of instruction for teaching and learning in the kindergarten level. However, exceptions shall be made to the following cases:

- (a) When the pupils in the kindergarten classroom have different mother tongues or when some of them speak another mother tongue;
- (b) When the teacher does not speak the mother tongue of the learners;
- (c) When resources, in line with the use of the mother tongue, are not yet available; and
- (d) When teachers are not yet trained how to use the MTB-MLE program.

Note: In such exceptional cases, the primary medium of instruction shall be determined by the DepEd aligned with the framework being used in the elementary level including teacher training and production of local resources and materials under DepEd Order No. 74, series of 2009.

Section 6. Implementing Agency. - The authority to regulate the organization, operation and/or implementation of the kindergarten education program of both public and private schools shall be vested upon the DepEd, through the creation of a new Division under the BEE and other necessary support to achieve successful implementation of kindergarten education to include, but not limited to, increasing the number of kindergarten teacher positions with the required salaries and benefits, enhancing teacher training in early education, and providing the necessary allocations for classrooms and chairs, facilities and equipment, and textbooks.1avvphi1

Section 7. Duties, Powers and Functions. - The DepEd, through the BEE, shall exercise the following powers and functions:

- (a) Oversee and supervise the organization, operation and implementation of the kindergarten education program;
- (b) Develop the curriculum for kindergarten education consistent with the universally accepted norms and standards, including values formation all of which shall be developmentally appropriate, and use of the MTB-MLE as a medium of instruction and to periodically review such for purposes of upgrading;
- (c) Develop teaching strategies using the unique feature of the MTB-MLE which shall include, but not limited to, the following:

- (1) The two-track method (storytelling and reading, listening story, oral communication activities);
- (2) Interactive strategies;
- (3) Use of manipulative games; and
- (4) Experiential, small group discussions and total physical response (TPR) among others.

Approved: JAN 20 2012

Child Friendly School System (CFSS)

- Is a *project of the United Nations Children's Fund (UNICEF) and the DepEd*
- Need of a child friendly schools and desired outcomes for the children as follows:
 1. To be healthy, well nourished, free from exploitation and violence and from labor
 2. To be aware of their rights...
 3. To be able to protect themselves...
 4. To be able to participate in decisions which affect their lives in accordance with their evolving capacities
 5. To respect diversity, practice equality and resolve differences...

Every Child A Reader Program (ECARP)

- To develop pupil's reading and communication skills by Grade 3
- Designed to improve the delivery of instruction of reading teachers in Grade I – III
- And 8 week curriculum provides Grade I pupils adequate home-to-school transition and readiness experience
- Topics in the Modules:
 - Reading Readiness
 - Beginning Reading
 - Developmental Reading
 - Reading Remediation
 - Assessment
 - Selecting Developmentally Appropriate Materials

Brigada Eskwela

- Began in May 2003
- Is every observed every May of each year
- Capitalizing on the Spirit of BAYANIHAN
- Encourages parents, barangay residents, local businessmen, community, etc, to volunteer resources (financial, material, labor) and work collectively for the maintenance, and minor repair of schools during the month of May to prepare the schools for the opening of the classes in June

Adopt-A-School

- Republic Act 8525 or Adopt-A-School Act, enacted in 1988 for the very purpose of providing a venue for the strong and dynamic private sector to participate in nation-building through investments in the education of Filipino children

- DepEd introduced interventions to reduce student dropouts and keep the youth off the streets
- EDUCATION is the key to NATIONAL GROWTH

What is ALS?

- Alternative Learning System
- A FREE education program implemented by the DepEd
- A ladderized, modular non-formal education program by the DepEd.
- Benefits those who cannot afford formal schooling and follows whatever is their available schedule
- Provides a viable alternative to the existing formal educational instruction, encompassing both the non-formal and informal sources of knowledge and skills
- Teachers that are involved in this program are called “Mobile Teachers” for the reason that they can often go about teaching in rural and depressed areas where a formal classroom is not available.

Who are the target learners of ALS?

- Elementary and Secondary school dropouts
- Youth and Adults although in school but over-aged for Grade 6 and 4th year
- Unemployed/underemployed OSY's and adults
- Industry-based workers, housewives, maids, factory workers, driver
- Members of cultural minorities/Indigenous People (IPs)
- Persons With Disabilities (PWD's)/ physically challenged
- Inmates, rebel/soldier internees